

Foran Singh v. Executive Engineer, Dakshiranchal Vidyut Vitaran Distribution Division, Firozabad and Another

Allahabad High Court · Division Bench · 11 April 2011 · 2011 SCC OnLine All 639 : (2011) 87 ALR 800 · C.M.W.P. No. 15059 of 2011 · **Writ petition disposed of; prayers rendered infructuous by the disposal of the representation, with liberty to pursue the Code's grievance remedy**

HEADNOTE

Where the consumer's representation against a recovery has been decided during the pendency of the writ (here by order dated 4.4.2011), the writ prayers for its decision and for staying recovery become infructuous, and the consumer must pursue the statutory grievance remedy under Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005 (a complaint to the licensee and, failing satisfaction, to the Consumer Grievance Redressal Forum). The petitioner's late father had a tube-well connection which the petitioner believed to have been disconnected; a recovery notice in the father's name and a subsequent demand notice were challenged. As the representation had since been decided, the Court disposed of the writ leaving the petitioner to pursue the Code's grievance mechanism.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Consumer relegated to the Code's complaint / CGRF grievance remedy against a recovery/representation order

QUESTION

After the consumer's representation against a recovery has been decided during the writ's pendency, what remedy remains?

HOLDING

The writ prayers become infructuous, and the consumer's remedy against the order deciding the representation lies under Clause 7.10 r/w Clauses 7.7.1 to 7.7.5 of the Code: a complaint to the licensee and, if the licensee fails to settle or the consumer is dissatisfied, a complaint before the Consumer Grievance Redressal Forum. The Court disposed of the writ leaving that remedy open. ¶ 8-13

LIMITING FACTS

Recovery notice (24.7.2009) and demand notice (20.12.2010) in the deceased father's name for a tube-well connection believed disconnected; representation decided by order dated 4.4.2011 during pendency.

PRINCIPLE TAGS

relegate-to-statutory-remedy Against an order deciding a recovery representation, the consumer is relegated to the Code's grievance mechanism (complaint to licensee, then CGRF) under Clause 7.10 r/w Clauses 7.7.1-7.7.5. ¶ 8-13

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE RECOVERY / THE ORDER DATED 4.4.2011 DECIDING THE REPRESENTATION

Left to be agitated through the Code's grievance remedy; the Court expressed no opinion. ¶ 11-13